

AI in Journalism, Feroni (GPDP): “Man Must Remain at the Center of Information”

Generative artificial intelligence (AI) in journalism raises crucial questions regarding its impact on democracy, ethics, copyright protection, and the spread of misinformation. While AI offers new possibilities for content creation, it is essential to keep humans at the center of information to ensure reliability, transparency, and accountability.

****Post-AI Act Perspectives****

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Gradually, sophisticated AI systems have permeated the media sector. “The drafting of this article was supported by the use of an AI system and reviewed, checked, and modified by our editorial team.” Increasingly, people approaching a news article found online, on the websites of news outlets or on social media channels, encounter disclaimers similar to the one mentioned.

****The Impact of Generative AI on Journalism****

This is not a new topic. For nearly a decade, articles generated by algorithms have been published in various sectors, including finance, sports, and weather, where structured data is available. However, there is a key distinction between these early implementations of AI in the journalistic world and the current ones, namely the creative potentials of generative AI, fueled by unstructured data.

Since the public release of large language models, including the well-known ChatGPT, we have witnessed the widespread dissemination of so-called “generative AIs,” due to their innovative ability to create realistic texts, accurate images, and plausible audio from simple commands entered by humans in a chat.

The “race” for generative AIs by major tech players, such as Microsoft and Google, has stimulated significant economic investments, enabling impressive technical developments of the models. Drafting articles even on specific topics, providing detailed and coherently organized information, creating posts and content for social media, writing scripts for videos and podcasts, are just some possible uses of generative AIs in journalism. The most advanced functionalities of these conversational models even allow for the adaptation of tone, style, and values of responses, generating personalized and more natural texts, and learning “through reinforcement” from interaction with users.

Despite being technologically impressive, these developments raise important questions about their impact on democratic systems.

****The Impact of Language Models on Democratic Dialectics****

Until now, we have taken for granted the role of humans in determining the themes of public debate. The journalist, in fact, must perform the fundamental function of selecting, verifying, and publishing information relevant to the public, ensuring plurality, objectivity, completeness, and impartiality. By fulfilling these tasks, vital for the quality of public debate, the journalist must contribute to the effectiveness of citizens' right to information and openness to diverse political, cultural, and religious opinions, as established by the historic ruling No. 11/1969 of the Constitutional Court.

With the advent of generative AIs, information professionals are supported by language models to draft article drafts, generate audiovisual content, synthesize texts, translate posts, and customize interactive content for readers. It is evident that these examples also highlight the risks of using generative models in journalistic activities, such as the dissemination of factually incorrect news, despite human review (at least, as declared).

Thus, the issue of generative AIs raises delicate ethical questions. In this perspective, the duty of correction for errors and inaccuracies, as provided for by Article 4 of the Ethical Rules regarding the processing of personal data in the exercise of journalistic activity by the Privacy Authority (dated November 29, 2018), assumes a central and renewed importance.

****What Creativity? Generative AIs Feed on Copyrighted Content****

The entry of generative AIs into the world of information also raises concerns related to the protection of intellectual property and authors' rights of third parties. It is well known that AI models are trained with data collected massively, using so-called web scraping techniques, including textual, visual, and audiovisual content owned by third-party authors, publishers, and journalists without their prior authorization.

****NYT vs OpenAI, an Emblematic Case****

The extensive use of these techniques to feed generative AI models affects the protection of other fundamental rights, such as the right to work, the authorship of a work, and the freedom of entrepreneurial initiative. The well-known case of the New York Times is emblematic. Initially, the renowned newspaper adopted technological countermeasures to protect its editorial content, blocking the operation of scraping software on its website. Then, at the end of December last year, the New York Times filed a lawsuit against OpenAI LLC, seeking damages.

suddetti obblighi, vi è quello di effettuare una valutazione del rischio, che deve essere condotta in modo rigoroso e documentato, per garantire che i modelli non presentino rischi inaccettabili per i diritti fondamentali e la sicurezza degli utenti.

In aggiunta, il Regolamento prevede che i fornitori di modelli di intelligenza artificiale ad alto rischio debbano implementare misure di mitigazione dei rischi e garantire la supervisione umana nei processi decisionali automatizzati. Questo è particolarmente rilevante in settori sensibili come la salute, la giustizia e la sicurezza pubblica, dove le decisioni influenzano direttamente la vita delle persone.

Il Regolamento sull'IA stabilisce anche un meccanismo di sorveglianza e enforcement, che prevede l'istituzione di autorità nazionali competenti per monitorare l'applicazione delle norme e garantire la conformità da parte dei fornitori e degli utilizzatori di sistemi di IA. Queste autorità avranno il potere di effettuare ispezioni, imporre sanzioni e richiedere la cessazione di attività non conformi.

Infine, il Regolamento prevede un dialogo continuo tra le istituzioni europee, i fornitori di tecnologia, i ricercatori e la società civile, al fine di aggiornare e adattare le normative in base all'evoluzione delle tecnologie e delle esigenze sociali. Questo approccio mira a garantire che l'innovazione tecnologica avvenga in un contesto di rispetto dei diritti fondamentali e di promozione del bene comune.

In conclusione, l'AI Act rappresenta un passo significativo verso una regolamentazione equilibrata e responsabile dell'intelligenza artificiale in Europa, con l'obiettivo di proteggere i diritti dei cittadini e promuovere un uso etico e sostenibile delle tecnologie emergenti.

these, the obligation to notify the European Commission if the thresholds of high computational capacity are reached, the impact assessment and mitigation of identified systemic risks, the monitoring, documentation, and reporting of serious incidents occurring in the operation of models and possible corrective measures, the implementation of high cybersecurity measures.

Regarding deepfake technology, the AI Act introduces in Article 52, paragraph 3 the obligation for users of AI systems capable of creating or manipulating photographic, vocal, or audiovisual content to communicate this clearly and distinctly to the user, for example by using watermarks. An exemption is provided if the use of such generated content is necessary for artistic expression and the manifestation of free thought.

What are the prospects for journalism post-AI Act? The freedom of information is an indispensable tool for participation in public and political debate. For this reason, it has a dual nature: one that manifests in the right to inform (without undue interference) and another that manifests in the duty to educate, that is, to fulfill the task of providing the public with informed and responsible information.

On the ridge of this dual nature, an epochal challenge is played out for publishers, journalists, and information professionals, namely to combine professionalism and innovation while maintaining the fiduciary bond with the public. This will involve experimenting with the uses of generative AIs to optimize news research and selection, the verification of data and erroneous or fabricated content, and the creation of original content, in compliance with the non-negotiable principle of transparency. The application of this latter principle will concretely require declaring the origin of the content disseminated

by language models, providing clear and intelligible information to the public, with appropriate disclaimers and labels.

The use of generative models must occur according to a responsible and critical approach, with an awareness of the nature, capacity, and limits of such technologies. This is especially true with regard to the phenomenon of "hallucinations," that is, the risk of these models generating factually incorrect information and, therefore, needing to be verified manually ex post. Thus, it will be essential to ensure effective human oversight to guarantee the dissemination of reliable news.

The journalistic profession will, finally, inevitably be called to confront texts or multimedia content whose origin and accuracy may not be certain or simply verifiable. Paraphrasing the words of the United States Supreme Court in the case *United States v. Alvarez*, the remedy against false or fabricated statements will be true and authentic information, responding to the misinformed with the enlightened, according to a transparent, critical, and pluralistic approach, in compliance with ethical rules, interpreted in light of the inevitable technological evolution.

Notes

[1] See the New York Times web page: <https://www.nytimes.com/robots.txt>.

[2] For a journalistic in-depth analysis, see Michael M. Grynbaum and Ryan Mac, *The Times Sues OpenAI and Microsoft Over A.I. Use of Copyrighted Work*, available online at the URL <https://www.nytimes.com/2023/12/27/business/media/new-york-times-open-ai-microsoft-lawsuit.html>. The citation act no. 1:23-cv-11195 filed on December 27, 2023, is available online at the URL <https://www.courthousenews.com/wp-content/uploads/2023/12/new-york-times-microsoft-open-ai-complaint.pdf>.

[3] The NewsGuard report is available online at the URL:

<https://www.newsguardtech.com/it/special-reports/centro-monitoraggio-ia/>.

[4] Nick Clegg, *How Meta Is Planning for Elections in 2024*, available online:

<https://about.fb.com/news/2023/11/how-meta-is-planning-for-elections-in-2024/>.